



CHAPTER xxxiv.

An Act to confer further powers on the Sheringham Gas and Water Company and for other purposes. A.D. 1919

[31st July 1919.]

WHEREAS by the Sheringham Gas and Water Order 1888 (confirmed by the Gas and Water Orders Confirmation Act 1888) (herein-after referred to as "the Order of 1888") the Sheringham Gas and Water Company Limited (herein-after called "the limited company") were authorised to supply gas and water within the parishes of Sheringham and Beeston Regis in the county of Norfolk and it was provided that the share capital of the limited company for the purposes of their gas undertaking should not exceed six thousand pounds and for the purposes of their water undertaking should not exceed six thousand pounds:

And whereas by section 18 of the Order of 1888 the standard price to be charged by the Company for gas supplied by them was fixed at five shillings per one thousand cubic feet subject to increase or decrease as therein provided according to decrease or increase in the standard dividend of ten pounds per centum per annum payable by the Company on their ordinary capital:

And whereas by the Sheringham Gas and Water Act 1898 (herein-after referred to as "the Act of 1898") the limited company were dissolved and the shareholders therein were re-incorporated into a new company (herein-after referred to as "the Company") and the undertaking of the limited company including all the rights powers and authorities which were vested in the limited company were vested in the Company:

And whereas by section 25 of the Act of 1898 it was provided that the Company should not in any one year make out of their

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A.D. 1919. profits any larger dividend on the sum of six thousand pounds (original) gas stock or the sum of six thousand pounds (original) water stock than at the rate of ten pounds per centum per annum and on the additional water or gas stock authorised by the said Act than at the rate of seven pounds per centum per annum unless a larger dividend was at any time necessary to make up the deficiency of any previous dividend on the water or gas stock which had fallen short of the said rates:

And whereas although the Act of 1898 constituted the Company a maximum-dividend Company with power to pay back dividends in lieu of the standard price and sliding scale of dividend dependent upon the profits of each particular year fixed by the Order of 1888 the price which the Company might charge for the supply of gas was not limited and it is expedient to fix a maximum price to be charged for the gas supplied by the Company:

And whereas it is expedient that new provisions should be made with reference to the quality and testing of the gas supplied by the Company and that such further provisions should be made with respect to the Company and their undertaking as are in this Act contained:

And whereas by the *Sheringham Gas and Water Order 1911* (confirmed by the *Gas and Water Orders Confirmation Act 1911*) (herein-after referred to as "the Order of 1911") the Company were authorised to raise additional capital both ordinary and preference and to borrow further moneys in respect thereof and it is expedient to make further provision in regard to the raising of such capital:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say): —

PRELIMINARY.

1.—(1) This Act may be cited as the *Sheringham Gas and Water Act 1919*.

Short and
collective
titles.

(2) The Sheringham Gas and Water Order 1888 and the Sheringham Gas and Water Act and Order 1898 and 1911 and this Act may be cited together as the Sheringham Gas and Water Acts and Orders 1888 to 1919. A.D. 1919.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):— Incorporation of general Acts.

(1) The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital):

(2) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

(3) The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section:

(4) The Waterworks Clauses Acts 1847 and 1863 Provided that section 44 of the Waterworks Clauses Act 1847 shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom and as if the words "in case the occupier shall make default in payment of such rent and the owner shall have required a supply of water to such house" were inserted in that section in lieu of the words "in his default":

(5) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly

Interpretation.

A.D. 1919. or partially incorporated herewith have the same respective meanings And—

The expression “the Company” means the Sheringham Gas and Water Company;

The expression “the directors” means the directors of the Company;

The expression “limits of supply” means the limits within which the Company are authorised to supply gas and water;

The expression “calorific power” means the total heat value expressed in British thermal units;

The expression “British thermal units” means British thermal units gross per cubic foot of gas;

The expressions “the Order of 1888” “the Act of 1898” and “the Order of 1911” mean respectively the Sheringham Gas and Water Order 1888 the Sheringham Gas and Water Act 1898 and the Sheringham Gas and Water Order 1911.

SUPPLY OF GAS.

Limiting
price of gas.

4. The price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter other than a prepayment meter shall not at any time exceed six shillings and sixpence for every thousand cubic feet of gas and so in proportion for every smaller quantity:

Provided that at any time after the taking of the meter indices for the quarter ending at Christmas one thousand nine hundred and twenty-one the Board of Trade may on the application of either the Sheringham Urban District Council or the Company by order in writing signed by a secretary or an assistant secretary of the said Board alter the said maximum price by substituting any greater or less sum than six shillings and sixpence as the said maximum price and as from the date specified in such order (herein-after referred to as “the specified date”) the price to be charged by the Company for gas supplied by them shall be in accordance with such order A copy of such order made by the Board of Trade shall be published in the London Gazette and a copy of the said gazette containing such order shall be conclusive evidence of the due making and validity of the same and of the contents thereof.

5. Notwithstanding anything contained in this or any other Act relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

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Power to
vary price
according
to purpose
for which
gas is
supplied.

6.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove or in either of such cases at the rate of ten per centum per annum on the cost of the meter and fittings whichever shall be the higher.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

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Minimum
charge for
gas laid on
to premises
having a
supply of
electricity
or power
gas.

7. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of not more than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Testing-
place.

8. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be a testing-place which shall be provided by the Company within three months after the passing of this Act on any of the lands described in the First Schedule to the Act of 1898.

Testing for
calorific
power.

9.—(1) Within six months from the passing of this Act the Company shall provide and maintain at the prescribed testing-place apparatus for testing the calorific power of the gas supplied by them at such testing-place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas.

(2) The gas supplied by the Company shall be tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees and shall be of a calorific power of five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for illuminating power shall cease to apply to the Company and sections 28 to 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

10.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

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Provisions
as to testing
for calorific
power.

(2) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

11. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):—

Penalties for
deficient
calorific
power.

If the deficiency does not exceed fourteen British thermal units a sum not exceeding forty shillings;

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

12.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Provided that all gas supplied by the Company to the Midland and Great Northern Railways Joint Committee shall be supplied at such pressure as to balance a column of water not less than twenty-tenths of an inch in height at the inlet of the primary meter or meters registering the supply to such committee.

Pressure of
gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing-place or at any public lamp or on the premises of the Midland and Great Northern Railways Joint Committee at the inlet of the primary meter or meters registering the supply to such committee as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

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Saving as to
penalties.

13. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Power
to Board
of Trade
to vary
standard
calorific
power &c.

14. If after the expiration of five years from the passing of this Act application is made to the Board of Trade by the Company or by any body or person who may appear to the Board of Trade to have a substantial interest in the matter to reduce or increase the standard calorific power or the pressure prescribed by this Act the Board of Trade after hearing the parties and any other persons who appear to the Board to be interested may make such reduction or increase of the standard calorific power or of the prescribed pressure as they think fit.

Power to
supply gas
fittings &c.

15.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings (in this section referred to as "fittings") for lighting motive power heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be and all fittings let for hire as aforesaid notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises shall at all times continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

(3) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any fittings are or shall be fixed.

16.---(1) In any case in which the Company are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall re-connect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

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As to mode
of cutting
off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

17. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of re-connecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Occupier
to pay
expenses of
re-connect-
ing dis-
connected
supply.

18. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever date shall first occur Notice

Gas con-
sumers to
give notice
to Company
before
removing.

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Company
may refuse
to supply
gas in certain
cases.

19. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power
to enter
premises
and remove
fittings.

20. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Period of
error in
defective
meters.

21. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Anti-
fluctuators
for gas
engines.

22. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be

found in proper order but otherwise at the expense of such consumer. A.D. 1919.

23. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Power to take licences for use of patents.

SUPPLY OF WATER.

24. The Company may agree with the owner or occupier of any premises within the limits of supply who is not entitled to demand a supply of water from the Company to extend their mains to or over the property of such owner or occupier or to supply such premises with water in either case upon such terms as may be agreed and may recover from such owner or occupier any sum or sums of money agreed to be paid in respect of such supply in the same manner as water rates or rents are recoverable by them.

Agreements as to supply of water in certain cases.

25. When water supplied for domestic purposes is used for washing carriages or motor cars or for other purposes in premises where carriages or motor cars are kept the Company may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Supply of water by hose pipe for washing carriages &c.

26. Where a supply of water to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

Supply to farm-houses.

27. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for

Rates payable by owners of small houses.

A.D. 1919. the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

As to communication pipes.

28.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Company may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by the Company shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to Company to repair communication pipes.

29. If by reason of any injury to or defect in any communication pipe which the Company are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Company to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Company in executing such repairs shall be recoverable by the Company from the owner of the premises supplied or in cases where the communication pipe has been laid by and belongs to the occupier of such premises from the occupier. Provided that except in case of emergency the Company shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours' notice of their intention so to enter.

Company not bound to supply

30. The Company shall not be bound to supply more than one house by means of the same communication pipe

and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

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—
several
houses by
one pipe.

31. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of an officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
Company of
connecting
or discon-
necting
meters.

32. Any fittings let for hire under the provisions of section 55 of the Act of 1898 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Exemption
from distress
&c. of fittings
let on hire.

33.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Company and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus.

Detection of
waste.

(2) Provided that the Company shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that nothing in this Act shall extend to or authorise any interference with any works of any undertakers

A.D. 1919. within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

GENERAL PROVISIONS APPLYING TO GAS AND WATER
UNDERTAKINGS.

Power to
lay pipes in
streets not
dedicated to
public use.

34. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and water and the provisions of the Gasworks Clauses Act 1847 and of the Waterworks Clauses Act 1847 shall in regard to the supply of gas and water respectively apply as if section 7 of the former Act and section 29 of the latter Act were excepted from incorporation in this Act the Act of 1898 and the Order of 1888:

Provided that the Company shall not exercise the powers of this section with respect to any street or road belonging to or under the control or management of the Midland and Great Northern Railways Joint Committee except with the consent of that committee but such consent shall not be unreasonably withheld and if any difference shall arise between the said committee and the Company as to whether such consent is in any case unreasonably withheld the difference shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and in carrying out any works authorised by this section such works shall be laid down executed and subsequently maintained by the Company under the direction and superintendence and to the reasonable satisfaction of the chief engineer of the said committee and in accordance with plans and sections previously submitted to and approved by him and the Company shall make to the said committee full compensation for all damage sustained by them by reason of the exercise of the powers of this subsection and the Company shall not unreasonably obstruct or interfere with the convenient access to any such street or road.

Dwelling-
houses for
Company's
employees

35. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their under-

taking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company. A.D. 1919.
offices show-rooms &c.

36. A notice to the Company from a consumer for the discontinuance of a supply of gas or water as the case may be shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company. Notice to
discontinue
supply of
gas or water.

MEETINGS AND DIVIDENDS.

37.—(1) The ordinary general meeting of the Company shall be held in each year in the months of February or March or at such other time as the directors may appoint. Annual
meeting of
Company
and interim
dividend.

(2) The directors may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Company out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the maximum yearly dividend payable on such shares or stock.

38. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of
transfer
books pre-
vious to
declaring
interim
dividend.

39. Notwithstanding anything contained in section 30 of the Gasworks Clauses Act 1847 incorporated with the Act of 1898 and the Order of 1911 it shall not be lawful for the Company to apply any of their funds or profits to the payment of any moneys to make up the deficiency of any dividend paid or payable in respect of any year prior to the first day of January one thousand nine hundred and fifteen so long as the As to
making up
deficiency
in profits in
previous
years.

A.D. 1919. price charged by the Company for gas supplied by them to persons who shall burn the same by meter other than a prepayment meter is more than five shillings for every one thousand cubic feet of gas.

DIRECTORS.

Notice to be given of any person desirous to be elected as director of Company or of opposition to re-election.

40. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office Any such person must have been the holder of the qualifying amount of shares or stock for at least three months prior to his election In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

As to appointment of managing director.

41.—(1) The directors may appoint any one of their body to be a managing director of the Company and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

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42. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of the Company.

Power for directors to determine remuneration of secretary.

FINANCIAL.

43. The provisions of section 6 (Additional capital) of the Order of 1911 in so far as they limit the amount of additional capital to be issued as preference stock are hereby repealed and the Company may issue the whole or such portion as they think fit of the additional capital authorised by the Order of 1911 as preference stock.

Removal of limit on amount of preference stock.

44. Section 10 (Limits of dividend on capital) of the Order of 1911 shall be read and have effect as if the words "seven pounds" had been inserted therein instead of the words "six pounds."

Dividend on preference stock.

45. The Company may from time to time apply for or towards all or any of the purposes of this Act and for or towards the general purposes of their undertaking to which capital is properly applicable any sums of money which they have already raised or are authorised to raise or which may be in their possession or under their control and which are not required for the purposes to which they are made specially applicable.

Power to apply funds.

46.—(1) The Company may create and issue any preference stock or debenture stock authorised to be created and issued under the powers of the Order of 1911 as amended by this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

Issue of redeemable preference stock or debenture stock.

(2) If it is so provided in the resolution the Company may—

- (a) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and
- (b) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock

A.D. 1919.

create and issue new stock (either redeemable or irredeemable) or re-issue stock originally created and issued under this section.

(3) The Company shall not redeem out of revenue any debenture stock or preference stock created under this section.

Power to make superannuation and other allowances.

47. It shall be lawful for the directors of the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees (other than weekly servants) of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Power to directors to subscribe to hospitals &c.

48. The directors of the Company may subscribe or make donations to infirmaries and hospitals and to convalescent homes and to similar institutions or to any exhibition and to the benevolent and sick funds of the employees of the Company and may for that purpose apply the funds and revenues of the Company.

PROFIT SHARING.

Profit sharing.

49.—(1) The directors may with the sanction of a majority of the proprietors of the Company present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the workmen servants and employees of the Company (in this section called "employees") or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee:

Provided that no such modification alteration or rescission of any such scheme or schemes shall place any employee who at the date of such modification alteration or rescission is entitled under such scheme to participation in profits in a worse position than he would have been if such modification alteration or rescission had not been made.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen years and shall be in writing and may be made on the part of the Company under the hands

of any two directors or under the hand of the secretary or of any person from time to time appointed in that behalf by resolution of the directors. A.D. 1919.

(3) Notwithstanding anything contained in any Act relating to the Company the Company may if and whenever required by any persons being the trustees under any such scheme so to do issue to any employee of the Company such amount of ordinary stock as the trustees may specify (being in each case within the limit of the amount of ordinary stock which the Company may for the time being be authorised to issue) without first offering such stock for sale by public auction or tender. Provided that any ordinary stock issued under the provisions of this section shall be issued at the average price at which according to the Company's books sales of ordinary stock were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of ordinary stock within the said period then at the price at which the last sale of such stock was effected making due allowance in each case for any enhancement in price by reason of any accrued dividend. The price at which such stock is to be issued shall be determined by the said trustees in accordance with the provisions of this subsection. Provided that if there has been no sale of ordinary stock within a year and the directors are of opinion that the price at which the last sale was effected does not represent the fair value of such stock at the time when the Company are required to issue the same the price at which such stock shall be issued shall be fixed by the directors at what they consider to be the fair value of the stock at the time of issue.

50.—(1) Subject to the provisions of this section and the regulations set forth in the First Schedule to this Act any employee of the Company who shall have become entitled to participate in the profits of the Company under any such scheme or schemes as are referred to in the last preceding section of this Act and not being under the age of sixteen years (in this section referred to as "the co-partner") may nominate any person or persons (in this section referred to as "nominee") who on the death of the co-partner shall (to the extent of a total value of not exceeding one hundred pounds and so far as the same are covered by such nomination) be entitled to be registered as holder of any ordinary stock of the

Disposal of
stock and
deposits of
co-partners
on death.

A.D. 1919. Company (in this section referred to as "stock") and to be paid any bonus or other sums left on deposit (in this section called "deposits") with persons being the trustees under such co-partnership scheme (in this section referred to as "the trustees") and standing in the name of the co-partner at the time of his death.

(2) On receiving satisfactory proof of the death of a co-partner who has made a nomination in force at his death the directors and the trustees if within three months of the death of the co-partner they have no notice of the claim of any creditor shall subject to the provisions of this section and the said regulations give effect to the nomination to the extent of a total value of not exceeding one hundred pounds and shall respectively in accordance with the directions of the nomination register the nominee as holder of the stock and pay to the nominee the deposits standing in the name of the co-partner at his death or as the case may be the portion of the stock and deposits mentioned in the nomination. Provided that if the total value of the stock and deposits standing in the name of the co-partner at his death exceeds one hundred pounds the directors and the trustees shall before giving effect to the nomination to a greater extent than seventy-five pounds require the production of a duly stamped receipt for the succession duty payable on such stock or deposits or a letter or certificate from the Commissioners of Inland Revenue stating that no such duty is payable and the Commissioners shall give such receipt letter or certificate on the payment of the duty or satisfactory proof of no duty being payable as the case may be.

(3) If any co-partner dies intestate without having made any nomination under this section in force at his death and the total value of the stock and deposits standing in his name does not exceed one hundred pounds then without letters of administration the directors and the trustees if within three months of the death of the co-partner they have no notice of the claim of any creditor may respectively register the stock in the names of and pay the deposits to such persons as appear to a majority of the trustees upon such evidence as they may deem satisfactory to be entitled by law to be registered as owners of the stock or to receive the deposits. Provided that if the total value of the stock and deposits of the deceased co-partner exceeds ninety pounds the directors and the trustees shall before dealing

with the stock or deposits under this subsection to a greater extent than seventy-five pounds obtain from the Commissioners of Inland Revenue a receipt for the legacy duty payable thereon or a letter or certificate stating that no such duty is payable. A.D. 1919.

(4) When the principal value of the estate in respect of which estate duty is payable of any co-partner exceeds one hundred pounds any stock registered or sum paid under this section without probate or letters of administration shall notwithstanding such registration or payment be liable to estate duty as part of the amount on which that duty is charged.

(5) The directors and the trustees shall respectively before registering any person as the holder of any stock or paying to any person any deposits standing in the name of a deceased co-partner satisfy themselves that the principal value of the estate of the deceased co-partner does not after deduction of debts and funeral expenses exceed one hundred pounds and in the absence of other evidence to their satisfaction shall be empowered to require a statutory declaration by such person to that effect or if such principal value exceeds one hundred pounds they shall before registering the stock in the name of or paying the deposits to any person other than the legal personal representative of the deceased co-partner to an extent greater than three-fourths of the total value of such stock and deposits require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty.

(6) Any registration of stock or payment of deposits made by the directors or the trustees under the provisions of subsection (3) of this section shall be valid and effectual against any demand made upon the Company the directors or the trustees by any other person but the next-of-kin or lawful representative of the deceased co-partner shall have remedy for recovery of the stock so registered or deposits so paid as aforesaid against the person who has been registered as holder of the stock or received the deposits.

(7) For the purposes of this section the value of the stock of a deceased co-partner shall be deemed to be the value of such stock as at the date of the death of the co-partner and in the event of the directors and trustees being restricted under the provisions of this section from giving effect to any nomination

A.D. 1919. made by a deceased co-partner and in force at his death to the whole extent of the nomination they shall primarily give effect thereto to the extent to which it relates to stock.

BENEFIT FUND.

Power to
establish a
benefit fund.

51.—(1) The directors may if they think fit in respect of any half year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding one per centum per annum of the gross revenue of the Company during such half year to a fund to be called "the benefit fund" Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors would have been entitled to appropriate to the benefit fund out of the revenue of the Company at the rate aforesaid during the then preceding five years.

(2) The directors may out of the benefit fund grant a gratuity of any sum or make any pensions or other allowances payments or benefits to any of the weekly servants of the Company who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Company or to the widow or family or dependents of any such servant and on such terms and conditions as to contributions by such servants or otherwise as the directors may think fit Provided that it shall not be obligatory on any present or future servant of the Company to become a party to any arrangement made under this Act for securing to him or his widow family or dependents any gratuity pension or other allowance payment or benefit.

(3) The benefit fund shall be applicable for the purposes of this Act and for no other purpose whatsoever and if a benefit fund be established under this section no such gratuity pension allowance payment or benefit as is mentioned in this section (other than sick pay) shall be granted or paid to any such weekly servant widow family or dependent otherwise than out of the benefit fund.

(4) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such servant or the widow family or any dependent of any such servant gratuities pensions

A.D. 1919.

or other allowances payments or benefits as aforesaid and may make payments out of the benefit fund for the purpose of any such agreement.

(5) The moneys forming the benefit fund or any portion thereof shall be invested in securities in which trustees are by law authorised to invest or in such other securities as may be authorised by resolution of the Company.

(6) Every gratuity pension or other allowance payment or benefit secured made or granted under this Act shall be payable to or in trust for the servant person widow or dependent to whom the same shall be granted and shall not be assignable or chargeable with the debts or other liabilities of such servant person widow or dependent as the case may be.

(7) If the Company shall under the powers of this Act make any scheme involving contributions by their servants such scheme shall not come into operation until such scheme shall have been registered as the rules of a society under the Friendly Societies Act 1896 and any amendment or variation of such scheme shall not be valid until so registered and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply (a) as if such scheme were the rules of a society to which the said Act of 1896 applies (b) as if the Company were the trustees of such society (c) as if the benefit fund were the funds of such society and (d) as if persons contributing to and participating in the benefit of such fund were the members of such society.

MISCELLANEOUS.

52. Any notice to be served by the Company on a person supplied with gas or water shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or water or gas or water fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him

Authenti-
cation and
service of
notices by
Company.

A.D. 1919. by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Receipt in
case of
persons not
sui juris.

53. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Recovery of
demands.

54. Proceedings for the recovery of any demand made under the authority of this Act or any other Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties &c.

55. Save as otherwise by this Act expressly provided all offences against this Act or any other Act relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Several sums
in one sum-
mons.

56. Where the payment of more than one sum by any person is due under this Act or any other Act relating to the Company any summons or warrant issued for the purposes of those Acts or any of them in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Repeal of
certain pro-
visions of
Order of
1888.

57. The sections of the Order of 1888 of which the numbers and marginal notes are set forth in the Second Schedule to this Act are hereby repealed.

Costs of Act.

58. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

FIRST SCHEDULE.

REGULATIONS AS TO DISPOSAL OF STOCK AND DEPOSITS OF CO-PARTNERS ON DEATH.

1. In these regulations "the Company" means the Sheringham Gas and Water Company "the directors" and "the secretary" respectively mean the directors and secretary of the Company "appointor" means any person who makes a nomination under the provisions of the section of the Sheringham Gas and Water Act 1919 the marginal note whereof is "Disposal of stock and deposits of co-partners on death" and "the trustees" "stock" "deposits" and "nominee" have the same respective meanings as are given thereto in the same section.

2. A nomination shall be in writing in the form prescribed by the trustees and shall be signed by the appointor in the presence of a witness and shall be sent by post or left at the office of the secretary during the lifetime of the appointor.

3. A nomination when received by the secretary shall be registered and the receipt thereof shall be acknowledged.

4. A nomination may be revoked by the appointor by writing under his hand signed in the presence of a witness and the revocation shall be sent by post to or left at the office of the secretary during the lifetime of the appointor.

5. A revocation when received by the secretary shall be registered in like manner as in the case of a nomination and the receipt thereof shall be acknowledged.

6. The marriage of an appointor shall operate as a revocation of any nomination theretofore made by that appointor.

7. A nomination may relate to the whole of the stock and deposits standing in the name of an appointor or to part only of such stock and deposits.

8. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which an appointor is entitled at the time of his decease up to a total value of not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

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9. A nomination may be in favour of one person or of several persons and in the latter case may direct that on the death of the appointor the stock shall be registered in the name of and that the deposits shall be paid to one or more of the persons named in the nomination or that the persons named in such nomination shall be registered as owners of the stock and shall take the deposits or any of them respectively in specified shares or may give directions to both effects.

10. No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

11. The receipt of any nominee who has attained the age of sixteen years shall be a good discharge to the trustees for any sum paid to him notwithstanding that such nominee has not attained the age of twenty-one years.

12. Where the directors have registered stock in the name of or the trustees have paid deposits to a nominee in ignorance of a marriage of the appointor subsequent to the nomination the registration shall be deemed to have been lawfully made and the receipt of the nominee shall be a valid discharge for the sum so paid.

13. Where any nominee is at the death of the appointor an infant under the age of sixteen years and it is proved to the satisfaction of the trustees that funds are needed for the maintenance education or benefit of such infant the directors may register the stock in the name of and the trustees may pay the deposits mentioned in the nomination or any part thereof to any person who may satisfy the trustees that he will apply any money received by him from the trustees or by the sale of or as interest on such stock for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the trustees for the amount so paid.

SECOND SCHEDULE.

SECTIONS OF THE ORDER OF 1888 REPEALED.

1. Order to consist of four parts.
6. Limits of Order.
7. Undertakers.
8. Incorporation of Gasworks Clauses Acts.
9. Gas capital.
10. Limits of dividend on gas capital.

[9 & 10 GEO. 5.] *Sheringham Gas and Water* [Ch. xxxiv.]
Act, 1919.

11. Limits of borrowing powers in respect of gas undertaking. A.D. 1919.
12. If profits exceed the amount limited excess may be invested and form an insurance fund. —
13. Application of excess of profits over prescribed rates.
14. Power to create a reserve fund out of dividend in excess of the prescribed rates of dividend and application thereof.
16. Construction and maintenance of gasworks and sale of gas and residual products.
17. Quality of gas.
18. Fixing maximum price of gas with sliding scale as to dividend.
19. Pressure of gas.
20. Testing gas.
21. No penalty in case of unavoidable cause.
22. Separate accounts to be kept in respect of gas undertaking.
26. Capital.
27. Limit of borrowing powers.
33. Limits of pressure.
37. Power for undertakers to make regulations for preventing waste misuse or contamination of water.
38. Publication of regulations.
39. Evidence of regulations.
40. Power for undertakers to repair or alter pipes &c. where regulations not complied with.
41. Water supplied by agreement.
42. Supply of water by measure.
45. Amendment of 10 & 11 Vict. c. 17. s. 44.
51. Separate accounts to be kept in respect of water undertaking.
52. Several names in one summons.

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